



CHAPTER xcvi.

An Act to confer powers upon the lord mayor aldermen and citizens of the city of Bradford for the construction of waterworks street works and improvements and the acquisition of lands for the provision of trolley vehicles with respect to infectious diseases and the health good government and sanitation of the city to authorise the establishment of superannuation and other funds and to make provisions with respect to various matters of local administration and management. A.D. 1913.

[15th August 1913.]

WHEREAS the city of Bradford is a county borough subject to the Acts relating to municipal corporations and under the government of the lord mayor aldermen and citizens of the city (hereinafter called "the Corporation") acting by the council :

And whereas the Acts and Orders specified in the First Schedule to this Act (save so far as any of them is amended by any later Act or Order among the same) are now in force in the city and elsewhere conferring various powers upon the Corporation and are hereinafter referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made :

And whereas it is expedient that the Corporation should be authorised to construct the street improvements and the new streets by this Act authorised :

And whereas by the Act of 1892 the Corporation were empowered to construct two reservoirs in the valley of the River Nidd to be known as the Lodge Reservoir and the Woodale Reservoir and it is expedient that the Corporation

55 & 56 Vic
c. cxxxii.

A.D. 1913. — should be authorised to construct the reservoir and works by this Act authorised in lieu of the said two reservoirs and for the purpose of impounding the water which they are authorised to impound and that further powers as in this Act contained should be conferred upon the Corporation with respect to their water undertaking :

25 Vict
c. xviii.

And whereas the limits of supply of the Corporation as defined by the Act of 1862 have been from time to time extended and altered and it is expedient that the same should be defined and that the powers of the Corporation exerciseable therein should be specified :

And whereas it is expedient that power should be conferred upon the Corporation with respect to the taking of lands as in this Act set forth :

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to the laying out of streets and the construction and erection of buildings and that the provisions of this Act with respect to the sanitation good government and management of the city should be made :

And whereas it is expedient that the Corporation should be empowered as in this Act provided to establish maintain carry on and contribute to a superannuation fund for their officers and servants and to establish and maintain a fire insurance fund and a fund for insuring against claims arising by reason of accidents to workmen :

And whereas it is expedient that the provisions of this Act with respect to rates leviable in the city and the powers of the Corporation with respect to rating should be made :

And whereas having regard to the local circumstances of the city and to the fact that the Corporation have an adequate staff for the purpose it is expedient that the powers in this Act contained with respect to the entry upon common lodging-houses and the medical examination of the inmates therein should be conferred upon the Corporation :

And whereas it is expedient that the Corporation should be enabled to raise moneys for the purposes of this Act :

And whereas it is expedient that the other provisions in this Act contained should be sanctioned :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the proposed street works and other works and plans of the lands which may be taken compulsorily under the powers of this Act with a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands respectively have been duly deposited with the clerk of the peace for the west riding of the county of York which plans sections and book of reference are hereinafter referred to as "the deposited plans sections and book of reference":

A.D. 1913.

And whereas estimates have been prepared by the Corporation of the moneys required for the purchase of lands for and for the execution of the various works other than waterworks authorised by this Act and such estimates are as follows:—

For street improvements other than central improvements including the purchase of lands two hundred thousand five hundred and thirty pounds;

For the purposes of the central improvements including the purchase of lands seven hundred and ninety-one thousand two hundred and fourteen pounds;

For and in connection with trolley vehicles eleven thousand two hundred and twenty pounds:

And whereas estimates have been prepared by the Corporation of the moneys required for the execution of the waterworks authorised by this Act and for the completion of the works authorised by the former Acts and for the extension of the distributing system of the Corporation and such estimates amount to a sum of seven hundred and fifty thousand pounds:

And whereas it has become expedient to extend and enlarge the Conditioning House authorised by Part I. of the Act of 1887 and estimates have been prepared of the money required for carrying out such extension and enlargement and such estimates amount to the sum of forty thousand pounds:

50 & 51 Vict.
c. cxxxii.

And whereas by section 17 of the Act of 1873 the Corporation are required to pay compensation for setting back of existing buildings in streets within the city and it is expedient that the Corporation should be authorised to borrow further moneys for that purpose as by this Act provided:

36 & 37 Vict.
c. clxvii.

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

A.D. 1913.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Bradford Corporation Act 1913.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Street Works.
- Part III.—Central Improvements.
- Part IV.—General Provisions as to Street Works and Central Improvements.
- Part V.—Water.
- Part VI.—General Works.
- Part VII.—Lands.
- Part VIII.—Trolley Vehicles.
- Part IX.—Infectious Disease.
- Part X.—Sanitary.
- Part XI.—Street and Building Regulations.
- Part XII.—Miscellaneous Powers.
- Part XIII.—Superannuation Fund.
- Part XIV.—Fire and Workmen's Compensation Insurance Funds.
- Part XV.—Rates and Rating.
- Part XVI.—Financial Provisions.
- Part XVII.—General Provisions.

Incorporation of Acts.

3. So far as they are applicable for the purposes and are not inconsistent with the provisions of this Act—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);

Section 3 (Interpretation of terms) and Parts II. and III. A.D. 1913.
of the Tramways Act 1870;

The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the
“owner or reputed owner of any such house or of
“the agent of such owner” in section 44 of the
Waterworks Clauses Act 1847;

(b) Sections 75 to 82 of the Waterworks Clauses Act
1847 with respect to the amount of profit to be received
by the undertakers when the waterworks are carried on
for their benefit and section 83 relating to accounts; and

The provisions of the Railways Clauses Consolidation Act
1845 with respect to the temporary use of lands near the
railway during the construction thereof but for the
purpose only of constructing the reservoir and works
connected therewith and the new streets by this Act
authorised;

are hereby incorporated with and form part of this Act.

4. In this Act unless the subject or context otherwise ^{Interpreta-}
require— _{tion.}

Words and expressions to which by the Acts wholly or
partially incorporated with this Act meanings are
assigned have in this Act the same respective meanings;

“The city” means the city of Bradford;

“The Corporation” means the lord mayor aldermen and
citizens of the city;

“The council” means the council of the city;

“The town clerk” “the treasurer” “the surveyor” “the
medical officer” and “the inspector of nuisances”
respectively mean the town clerk the city treasurer the
city surveyor the medical officer and any inspector of
nuisances and respectively include any person duly
authorised to discharge temporarily the duties of those
officers;

“Occupier” means the person for the time being in actual
occupation or possession of the lands with reference to
which that term is used;

“The Municipal Corporations Acts” means the Municipal
Corporations Act 1882 and Acts amending the same
or otherwise relating to municipal corporations in
England;

A.D. 1913.

- “The Public Health Acts” means the Public Health Act 1875 and any Act or Acts amending the same;
- “Daily penalty” means a penalty for every day on which an offence is continued after conviction;
- “Infectious disease” means any infectious disease to which for the time being the Infectious Disease (Notification) Act 1889 applies within the city;
- “The city fund” and “the city rate” mean respectively the city fund and the city rate of the city;
- “The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district of the Corporation acting by the council as a sanitary authority;
- “Trolley vehicles” means mechanically propelled vehicles adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;
- “Street works” means the street works including the works in the central improvement area and the works connected therewith by this Act authorised;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any Order

or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1913,

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from the lands undertakings and other property for the time being of the Corporation and rates and moneys leviable by or on the precept of the Corporation.

PART II.

STREET WORKS.

5. Subject to the provisions of this Act the Corporation upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and in the line and situation and according to the levels shown on the deposited plans and sections may make and maintain wholly in the city the following street works (that is to say):— Power to execute street works

Work No. 1 A widening and improvement of Thornton Road in the township and parish of Bradford on the southern side thereof—

(a) From the junction of Tyrrel Street and Thornton Road to a point in Thornton Road 15 yards or thereabouts westward of the west side of Quebec Street;

(b) Between points respectively 63 yards or thereabouts east and 90 yards or thereabouts west of the centre of Westholme Street;

(c) From the west side of Tumbling Hill Street to the east side of Longside Lane:

Work No. 2 A widening and improvement of Listerhills Road in the same parish on the southern side thereof from the west side of Villiers Street to the east side of Lady Lane:

Work No. 3 A widening and improvement of Manor Row in the same parish on the northern side thereof from a point about 19 yards west of the centre of Stone Street to the north-west side of Middle Street:

Work No. 4 A widening and improvement of Cemetery Road in the same parish on the north-eastern side thereof commencing at the south-western corner of the Wesleyan Chapel Grounds opposite the centre of Scholemoor Road

A.D. 1913.

and terminating at a point 19 yards or thereabouts north-westward of the western side of Club Street :

Work No. 5 A widening and improvement at the south-eastern corner of Harrogate Road and New Line Greengates in the township and parish of Eccleshill commencing in New Line at a point about 9 yards east from the eastern side of Harrogate Road and terminating in Harrogate Road about 9 yards south of the southern side of New Line :

Work No. 6 A widening and improvement of Leeds Road in the said township and parish of Bradford on the northern side thereof between points respectively about 7 yards and about 31 yards east of the eastern side of Vicar Lane :

Work No. 7 A widening and improvement of Barkerend Road in the same parish on the south-eastern side thereof between the north-eastern side of Peckover Street and the western side of East Parade :

Work No. 8 A widening and improvement of Thornton Road in the same parish on the southern side thereof between points respectively about 90 yards and about 284 yards east of the centre of Pitty Beck where the same crosses under that road :

Work No. 9 A widening and improvement of Thornton Road in the same parish on the northern side thereof between points respectively about 226 yards and about 377 yards east of the centre of the said Pitty Beck :

Work No. 10 A widening and improvement of Wapping Road in the same parish on the eastern side thereof—

(a) Between points respectively about 40 yards north and about 23 yards south of the centre of Cambridge Place ;

(b) From the southern side of Oxford Place to the north-western side of North Wing :

Work No. 11 A widening and improvement of Smiddles Lane in the same parish on the northern side thereof from the western side of the Craven Heifer Inn to a point about 29 yards west of that inn :

Work No. 12 A widening and improvement of Smiddles Lane in the same parish on the southern side thereof

between points respectively about 27 yards and about 98 yards east from the east side of Dovesdale Road: A.D. 1913.

Work No. 13 A widening and improvement in the same parish of the south-eastern corner of Smiddles Lane and Manchester Road between the eastern side of Faxfleet Street and a point in Manchester Road about 25 yards north of the northern side of Scholes Street:

Work No. 14 A widening and improvement of Victoria Road in the said parish and township of Eccleshill on the eastern side thereof between points respectively about 138 yards and about 217 yards north of the northern side of Harrogate Road:

Work No. 15 A widening and improvement of Victoria Road in the same parish on the eastern side thereof from a point about 62 yards north of the northern side of Stott Terrace to the southern side of Hall Road:

Work No. 16 A widening and improvement of Victoria Road in the same parish on the eastern side thereof from a point about 105 yards north of the northern side of Hall Road to the southern side of Park Road:

Work No. 17 A widening and improvement of Victoria Road in the same parish on the eastern side thereof from a point 10 yards north-west of the north-western side of the bank to the east side of Prospect Street:

Work No. 18 A widening and improvement in the same parish of the western side of Victoria Road and the northern side of Stony Lane commencing at or near the junction of Victoria Road and King Street and terminating in Stony Lane opposite the Wesleyan School:

Work No. 19 A widening and improvement of Victoria Road in the same parish on the western side thereof between the south-eastern side of Ashfield Place and a point 17 yards or thereabouts south-east of the centre of Belle Vue.

PART III.

CENTRAL IMPROVEMENTS.

6.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use the lands hereinafter referred to as "the central improvement area" situate in the township

Power to take
lands for and
to make central
improvements.

A.D. 1913. or parish of Bradford and bounded on the north-west by Market Street on the north-east by Well Street and Forster Square on the south by Leeds Road and Hall Ings and on the south-west by Bridge Street.

(2) The Corporation may lay out and deal with the central improvement area and may divert alter and re-arrange the public streets and ways therein and thereover and the water-courses sewers drains pipes tubes channels and other works in or under any such streets or ways and for the purposes aforesaid may make and carry out wholly in the said parish and township of Bradford the following works (hereinafter referred to as "the central improvements") (that is to say):—

Work No. 20 A widening and improvement of Forster Square and Well Street being so much of the work described on the deposited plans as lies between Market Street and a point in Forster Square nearly opposite to the Forster Statue :

Work No. 21 A widening and improvement of Hall Ings on the north-western side thereof from Bridge Street to Well Street :

Work No. 22 A new street commencing at a point on the south-eastern side of Market Street about 45 yards south-westward from the south-western side of Forster Square and terminating at a point on the western side of Hall Ings about 28 yards from the northern side of Charles Street :

Work No. 23 A widening and improvement of Charles Street on the north-eastern side thereof between Market Street and Hall Ings :

Work No. 24 A new street commencing at a point on the south-eastern side of Market Street nearly opposite the centre of Bank Street and terminating on the north-west side of Leeds Road at the point where Brook Street joins that road :

Work No. 25 A widening of Brook Street on the south-eastern side commencing at a point 34 yards or thereabouts north-west from Leeds Road and terminating in Charles Street :

Work No. 26 A new street in continuation of Brook Street as proposed to be widened extending from Charles Street to a point on the south-western side of Forster Square opposite or nearly opposite to the Forster Statue :

Work No. 27 A widening of Leeds Road and Bridge Street on the north-western side of Leeds Road and the north-eastern side of Bridge Street commencing at the junction of Leeds Road and Well Street and terminating at the junction of Bridge Street and Market Street: A.D. 1913.

Work No. 28 A widening of Bridge Street on the north-eastern side thereof between Leeds Road and Hall Ings:

Provided that the Corporation shall not divert alter or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

7. The Corporation subject to the provisions and for the purposes of this Part of this Act and in connection with the central improvements may when they or the Midland Railway Company are owners of the lands on both sides thereof permanently close all or any of the following streets or any part or parts thereof respectively and thereupon all rights of way thereover shall cease and be extinguished and the Corporation may appropriate the site and soil of any such streets or parts of streets so permanently closed (that is to say):— Closing of certain streets.

Booth Street Brook Street Charles Street Bentley Street Swaine Street except the portion thereof from Collier Gate to Well Street Brown Street Ship Alley and Watkins Alley:

Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

8. The Corporation may for the purposes of this Part of this Act and in connection with the central improvements close temporarily (subject to the provisions of section 40 (Temporary stoppage of streets) of the Act of 1902) all or any part of the following streets and roads (that is to say):— Temporary closing of streets.

Hall Ings Bridge Street Leeds Road Well Street Collier Gate Peel Place Forster Square Market Street and Mildred Court.

9. The Corporation shall at all times during the execution of the central improvements and the works connected therewith As to access to railway stations.

A.D.1913. — maintain reasonably proper and sufficient access both for vehicular and pedestrian traffic to the passenger and goods stations of the Lancashire and Yorkshire Railway Company and of the Midland Railway Company near to which any such improvement or work is being executed.

For protection of Midland Railway Company.

10. For the protection of the Midland Railway Company (in this section referred to as "the Midland Company") the following provisions shall unless otherwise agreed between the Corporation and the Midland Company apply and have effect in relation to the exercise of the powers of Parts III. IV. and VII. of this Act so far as Works Nos. 20 to 28 may affect the railways known as "the Bradford through lines" authorised by the Midland Railway Act 1911 or the property of the Midland Company:—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the whole of the provisions of the agreement and the schedule attached thereto between the Midland Company and the Corporation dated the seventh day of March one thousand nine hundred and eleven and confirmed by section 20 of the said Act of 1911 shall remain in force and have effect save and except that the Midland Company shall not be required to construct the bridge over Swaine Street or to throw into the road the land for widening that street or to provide for the continuation of Brook Street into Forster Square in the said agreement agreed but the Midland Company shall build in lieu thereof a bridge over Work No. 26 (authorised by this Act) in manner hereinafter provided:
- (2) The Corporation shall not without the consent in writing of the Midland Company alter the position of Work No. 26 where it crosses under the Midland Company's authorised Bradford through lines (Railway No. 1) from the position shown on the deposited plans:
- (3) The said bridge over Work No. 26 shall be constructed by the Midland Company with the underside of the girders at a level not lower than three hundred and thirty-six feet above Ordnance datum and with a span not greater than sixty feet on the square between the abutments:

- (4) The Corporation shall not without in every case the previous consent in writing of the Midland Company enter upon take or interfere with any lands belonging to the Midland Company within a distance of twenty-one feet measured from the centre line of the said authorised Railway No. 1 as constructed or proposed to be constructed: A.D. 1913.
- (5) Save as hereinbefore expressly provided to the contrary the terms as between the Corporation and the Midland Company in the said agreement of the seventh day of March one thousand nine hundred and eleven in relation to the bridge to carry the Bradford through lines over Swaine Street shall apply to the said bridge over Work No. 26:
- (6) If any difference arises under this section between the Corporation and the Midland Company the same shall unless otherwise agreed be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

PART IV.

GENERAL PROVISIONS AS TO STREET WORKS AND CENTRAL IMPROVEMENTS.

11. In constructing any of the street works authorised by this Act the Corporation may deviate from the centre line shown on the deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or downwards. Power to deviate for street works.

12. Section 37 (Power to make junctions between existing and new streets &c.) of the Act of 1902 shall extend and apply to and in relation to the street works by this Act authorised as if that section was in this Act re-enacted with special reference thereto. Incorporation of section 37 of Act of 1902.

PART V.

WATER.

13. Subject to the provisions of this Act the Corporation may construct and maintain upon the lands and in the situation Power to construct waterworks.

A.D. 1913. and lines and according to the levels shown on the deposited plans and sections relating thereto the several works shown on the deposited plans which are as follows (that is to say):—

Work A A reservoir for the storage supply and distribution of water situated at or near Scar House on the River Nidd wholly in the township or parish of Stonebeck Up in the rural district of Pateley Bridge in the west riding of the county of York to be formed by a dam or embankment about 20 chains in length across the River Nidd near Scar House such dam or embankment commencing at a point 6 chains or thereabouts measured in a north-easterly direction from the north-eastern corner of Scar House and terminating in the field numbered 407 on the 25-inch Ordnance map of the said parish edition 1909 at a point about 9 chains south-east of Carle Side Barn:

Work B An aqueduct conduit or line or lines of pipes in the same township or parish commencing in the field numbered 367 on the said Ordnance map of the said parish edition 1909 at a point 7 chains or thereabouts measured in a south-easterly direction from the south-east corner of Carle Side Barn and terminating in the Woo Gill at a point therein about 30 chains from the junction thereof with the River Nidd:

Work C An aqueduct or conduit or line or lines of pipes in the same township or parish commencing at a point about $1\frac{1}{2}$ chains west of the point hereinbefore described as the commencement of Work A and terminating in the beck or watercourse nearly opposite Low Woodale at a point in such watercourse $19\frac{1}{2}$ chains or thereabouts measured in a south-easterly direction from the centre of the bridge carrying the public road over the River Nidd at Low Woodale.

Subsidiary
works.

14. The Corporation may in connection with and for the purpose of the works authorised by this Part of this Act make and maintain upon the lands shown upon the deposited plans or upon lands belonging to the Corporation and acquired under statutory powers all such subsidiary works including cuts channels catch-waters tunnels pipes conduits culverts drains sluices byewashes shafts overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches

engines machinery and appliances as may be necessary or convenient in connection with the before-mentioned works or any or either of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1913.

15. In the construction of the works authorised by this Part of this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent upwards or downwards not exceeding in the case of the reservoir three feet upwards and in the case of other works three feet upwards and ten feet downwards Provided as follows (that is to say):— Limits of deviation.

The Corporation shall not construct any embankment or wall of such reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition :

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

16. The Corporation or their contractors shall to the reasonable satisfaction of the medical officer erect fit up and maintain hospitals or infirmaries and temporary huts or other buildings necessary for the accommodation of the servants and workmen employed by the Corporation and their contractors in and about the construction of the reservoir by this Act authorised and the Corporation shall provide and pay for all such assistance whether of doctors surgeons or nurses as may be necessary and proper for the efficiency of all such hospitals or infirmaries except so far as the same shall be provided or paid for under or in pursuance of the National Insurance Act 1911 and any Act amending the same Any medical officer of health or other person authorised by the local sanitary authority acting in execution of the Public Health Acts for any district in which such hospitals or infirmaries huts or other buildings are erected and maintained shall be entitled at any time to enter into and inspect and examine any such hospitals infirmaries huts or other buildings in order to ascertain that the same are provided with Provision of hospital accommodation &c.

A.D. 1913. — proper and sufficient sanitary arrangements and that overcrowding is not permitted therein. If such person be obstructed in the performance of his duty under this section the person so obstructing shall be liable on summary conviction to a fine not exceeding forty shillings.

If the Corporation or their contractors fail to erect fit up and maintain such hospitals or infirmaries huts or other buildings as required by this section they shall be liable to a penalty not exceeding twenty pounds and to a penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalty may be recovered by the local sanitary authority in whose district such hospitals infirmaries huts or other buildings are required to be erected and maintained.

Defining
Corporation
water limits.

17. From and after the passing of this Act and subject to the provisions of this Act the water limits of the Corporation (hereinafter in this Part of this Act referred to as "the water limits") shall comprise the city and the parishes and places following (that is to say):—

Addingham Apperley Bingley Birkenshaw Birstall Burnsall
Calverley Clayton Cleckheaton Denholme Draughton
Drighlington Farsley Gildersome Gomersal Hunsworth
Liversedge Micklethwaite Morton Pudsey Queensbury
Shelf Shipley Silsden and Wilsden all in the west riding
of the county of York.

Application
of Water-
works
Clauses Acts
and powers
and duties of
Corporation.

18. Notwithstanding anything to the contrary contained in the Act of 1862 the Corporation shall have and may exercise within the water limits the powers rights and privileges and shall be subject to the obligations and duties conferred or imposed by the Waterworks Clauses Act 1847 and the Waterworks Clauses Act 1863 (so far as such obligations and duties are not inconsistent with the provisions of the former Acts other than the said Act of 1862 relating to the supply of water) as if the Corporation were the undertakers and the water limits were the limits of supply within the meaning of the said Waterworks Clauses Acts.

Price.

19. The Corporation shall subject to the provisions of this Part of this Act from time to time distribute water in every part of the water limits outside the city at the same prices and on the same terms and conditions as those at and on which the Corporation may for the time being be supplying water within

the city but the Corporation shall not be at liberty otherwise than by agreement to charge levy or recover within any part of the water limits outside the city any rate in aid public water rate or any other rate than a water rate in the nature of a water rent in respect of a supply of water to the person against whom the same shall be charged levied or recovered. A.D. 1913.

20.--(1) If the council of any urban or rural district which or any part of which is included within the water limits at any time within twelve months from the date of the passing of this Act serve notice in writing upon the Corporation requiring them so to do the Corporation shall subject as hereinafter in this section provided supply and continue to supply to such council and such council shall take exclusively from the Corporation in bulk all the water which such council may from time to time require for distribution within their district or such part thereof as is included within the water limits and any part of any other district within the water limits which at the date of the passing of this Act such council may be supplying by agreement with the council of such other district and such water may be distributed accordingly and the Corporation shall not without the consent in writing of such council distribute water in the district of any such council or in the part of any other district so supplied by them so long as such council shall take from the Corporation water in bulk under this section. Local authorities may require supply in bulk.

(2) In any case where there is at the passing of this Act a subsisting agreement under seal between the Corporation and any such council for a supply in bulk the provisions of this Part of this Act shall not affect or abrogate such agreement nor shall the Corporation except as by this Part of this Act otherwise provided be under obligation to supply otherwise than by agreement water in bulk to the council of any district in which at the date of the passing of this Act the Corporation are themselves distributing water.

21. The price at which and the conditions on which the Corporation shall supply water in bulk to any council entitled to require the same under the provisions of this Part of this Act shall unless agreed between the Corporation and such council be settled by arbitration and at the expiration of a period of twenty years from the date of the passing of this Act and at the expiration of each succeeding period of twenty years For determining price of supply in bulk.

A.D. 1913. — the price may be revised on the application of either party by arbitration.

Local authority taking in bulk may subsequently give notice for distribution by Corporation.

22. If at any time any council taking a supply of water in bulk from the Corporation under the provisions of this Part of this Act shall desire that the distribution of water in their district or the part thereof within the water limits shall be undertaken by the Corporation and shall give one year's notice thereof to the Corporation the obligation of the Corporation to continue to supply water in bulk to such council shall cease at the expiration of the said period of one year and the Corporation shall thereafter distribute water within such district or part thereof as aforesaid under and in accordance with the provisions of this Part of this Act.

Purchase by Corporation of certain works of distribution.

23.—(1) If any council entitled so to do shall not have required the Corporation to supply water in bulk under the provisions of this Part of this Act and are the owners of any reservoirs pipes or other works used for or in connection with the distribution of water within their district the Corporation shall before they commence to distribute water within that district purchase such reservoirs pipes and works upon terms to be agreed between the Corporation and such council or settled by arbitration and if any such council shall cease to take a supply of water in bulk the Corporation shall in like manner purchase any reservoirs pipes and distribution works of such council:

Provided that if any such council or any council taking a supply of water in bulk under the provisions of this Part of this Act are the owners of any such works of distribution within the district or districts of any other council or councils it shall unless otherwise agreed between all the parties concerned be determined by arbitration whether such works shall be purchased by the Corporation or by such other council or councils or in part by the Corporation and in part by any one or more of such other councils and in that case by whom and in what proportions the purchase price of the same shall be paid.

(2) Any sum paid to a council under this section shall be applied by them with the sanction of the Local Government Board either in the repayment of debt or for any other purpose for which capital money may be applied.

24. The Corporation shall not diminish the supply of water to be given by the Corporation within or for use within the part of the water limits outside the city unless at the same time the supply of water to consumers within the city be diminished in the same proportion.

A.D. 1913.
In case of necessity supply to be reduced rate-ably.

25. Nothing in this Part of this Act shall authorise the Corporation to distribute water within the urban district of Shipley without the consent of the council of that urban district and nothing in this Part of this Act shall affect the provisions of section 29 (Provision as to supply of water to Liversedge) of the Act of 1892.

As to supply in Shipley and Liversedge.

26. Notwithstanding anything contained in the Acts relating respectively to the Corporation and to the lord mayor aldermen and citizens of the city of Leeds (who are in this section called "the Leeds Corporation") the following provisions shall except so far as may be otherwise agreed in writing between the Corporation and the Leeds Corporation apply and have effect (that is to say):—

For mutual protection of Corporation and Leeds Corporation.

(1) The Corporation shall not supply water either directly or indirectly within or for use within the limits within which the Leeds Corporation are authorised to sell and supply water as defined in section 19 (Limits for water supply) of the Leeds Corporation (Consolidation) Act 1905:

(2) The Leeds Corporation shall not supply water either directly or indirectly within or for use within the water limits of the Corporation as defined in the section of this Act whereof the marginal note is "Defining Corporation water limits":

(3) Provided that notwithstanding anything contained in subsection (2) of this section the Leeds Corporation shall be entitled to supply water to any lands or buildings to which they are supplying water at the time of the passing of this Act such lands and buildings being shown by pink colour upon a plan signed by the respective engineers of the Corporation and the Leeds Corporation.

27.—(1) The Corporation before they commence under the powers of this Part of this Act to distribute water in any part of the urban district of Shelf in which any company is at the date of the passing of this Act supplying water shall purchase any reservoirs pipes and distribution works of any such Company.

Provisions as to urban district of Shelf.

A.D. 1913.

(2) Notwithstanding that the Corporation may at the date of the passing of this Act be distributing water in that district by agreement with the council thereof that council may serve notice upon the Corporation requiring them to supply water in bulk under and in accordance with the section of this Act of which the marginal note is "Local authorities may require supply in bulk" and thereupon the provisions of subsection (1) of that section shall apply and the said council before commencing to distribute water in any part of such district in which the Corporation may be distributing water shall purchase any works of distribution belonging to the Corporation within such district upon terms to be agreed between the council and the Corporation or settled by arbitration.

(3) Any sum paid to the Corporation under this section shall be applied by them with the sanction of the Local Government Board either in the repayment of debt or for any other purpose for which capital money may be applied.

Saving
rights of
owner of
Thornhill
Estate.

28. Nothing in this Part of this Act shall affect any existing rights of Thomas Bryan Clarke-Thornhill or other the owner or owners for the time being of the Thornhill Estate or of any part thereof.

As to sup-
ply in Skip-
ton Rural
District.

29.—(1) Notwithstanding that the Corporation may at the date of the passing of this Act be distributing water in the rural district of Skipton the council of that district may serve notice upon the Corporation requiring them to supply water in bulk under and in accordance with the section of this Act of which the marginal note is "Local authorities may require supply in bulk" and thereupon the provisions of subsection (1) of that section shall apply and the said council shall purchase any works of distribution belonging to the Corporation within the said district upon terms to be agreed between such council and the Corporation or settled by arbitration.

(2) Any sum paid to the Corporation under this section shall be applied by them with the sanction of the Local Government Board either in the repayment of debt or for any other purpose for which capital money may be applied.

Saving for
railway com-
panies.

30. Nothing in this Part of this Act shall prevent any company body or person (other than a company body or person authorised by Parliament to supply water) from supplying water to any railway company.

31.—(1) Nothing in this Part of this Act shall affect any of the rights of any association of landowners or any landowner (including the successors in title of such landowner) at the date of the passing of this Act distributing water in the parishes of Draughton and Morton and the rights and obligations of the Corporation in those parishes shall not be exercised or be effective so as to interfere with or affect any such rights.

A.D. 1913.
Saving
rights of
landowners
in parishes
of Morton
and Draughton.

(2) If within fifteen years from the date of the passing of this Act the Keighley Rural District Council shall acquire the existing waterworks of any such association of landowners in the parish of Morton or of any such landowner in that parish the provisions of the preceding subsection of this section shall apply to the Keighley Rural District Council as if that council had been an association of landowners or a landowner distributing water in the parish of Morton.

32. Nothing in this Part of this Act shall be deemed to prevent the exercise by any owner of land or water rights within the water limits and his successors in title of any powers and rights as such owner existing at the passing of this Act.

Saving
rights of
owners of
land or water
rights.

The word “owner” in this section includes lessee or occupier.

33. Nothing in this Part of this Act shall take away prejudice or affect any existing rights powers or privileges possessed or enjoyed by Reuben Gaunt and Sons Limited and their successors in title in respect of the Springfield Mills and Broom Mills at Farsley and the supply of water thereto or the maintenance of any works now existing for that purpose.

For protec-
tion of Reu-
ben Gaunt
and Sons
Limited.

34. Nothing in this Part of this Act shall affect the existing supply of water by the Cleckheaton Urban District Council to the present electric lighting undertaking and public baths belonging to that council.

For protec-
tion of
Cleckheaton
Urban Dis-
trict Council.

35. For the protection of the Great Northern Railway Company the Lancashire and Yorkshire Railway Company the London and North Western Railway Company and the Midland Railway Company (each of whom is in this section referred to as “the company”) the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say):—

For protec-
tion of rail-
way com-
panies.

(1) Whenever under the powers of this Part of this Act the Corporation shall require to lay down take up alter relay repair or renew any main or pipe upon

A.D. 1913.

across or under any railway for the time being belonging to or worked by the company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto they shall give to the engineer of the company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans :

- (2) Such works including the making good and repairing of any roads over any such railway and over any bridges and approaches which the company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Corporation shall be laid constructed and executed at the expense of the Corporation under the superintendence and to the reasonable satisfaction of the said engineer and according to plans and sections to be previously reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station :
- (3) When the Corporation open or break up any road or pavement of any street or other works belonging to or repairable by the company they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement and making good and for such further time if any as the soil so broken up shall continue to subside :
- (4) If the Corporation make delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Corporation :
- (5) The Corporation shall repay to the company the expense of any temporary works or watching which the company may reasonably consider necessary to provide for the protection of any such railway or

the traffic thereon during the carrying out of the works aforesaid: A.D. 1913.

(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Corporation shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided:

(7) Any difference which may arise between the Corporation and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

36. Nothing in this Part of this Act shall affect the supply of water by the Bingley Urban District Council under any existing or future contract for water supply with William Ferrand or other the person for the time being entitled to the springs and streams (or any of them) arising or flowing on the Saint Ives Estate as referred to in section 8 of the Act of 1873 or within the present district known as the Cullingworth Ward or to the Cullingworth Wesleyan School premises the council's gas-works and the Nook Estate at Cullingworth within the district of the said council from their present works or any future extension thereof. For protection of Bingley Urban District Council.

37.—(1) If the Farsley Urban District Council (in this section referred to as "the council") within twelve months after the passing of this Act give notice in writing to the Corporation requesting them to purchase the lands and hereditaments belonging to the council and situate on the Bradford Road and containing two acres two roods or thereabouts the Corporation shall purchase and the council shall sell the said lands and hereditaments at such price as may be agreed upon between the council and the Corporation or as failing agreement may be fixed by an independent valuer to be appointed at the request of either party by the Local Government Board as the value of the said lands and hereditaments without taking into account any expenditure incurred by the council upon works in connection with borings. For protection of Farsley Urban District Council.

A.D. 1913.

(2) Nothing in this Part of this Act shall prevent any purchaser of the said lands and hereditaments or his successors in title from exercising any powers or rights in respect of the same which he or they would have been entitled to exercise if this Act had not been passed.

Arbitration.

38. Where any matter is by this Part of this Act referred to arbitration the same shall unless otherwise provided be determined by a single arbitrator to be appointed by agreement between the parties concerned or failing agreement by the Local Government Board and subject to the provisions of this section the Arbitration Act 1889 shall apply to any such arbitration.

PART VI.

GENERAL WORKS.

Power to
make gene-
ral works.

39. Subject to the provisions of this Act the Corporation may within the limits of deviation (if any) shown on the deposited plans make maintain and provide all such incidental works and conveniences as may be necessary or expedient in connection with or for the purposes of the works described in and authorised by this Act or any of them.

Incorporation of certain sections of Act of 1902.

40. The following enactments of the Act of 1902 (that is to say):—

Section 40 (Temporary stoppage of streets);

Section 41 (Power to alter sewers gas and water pipes &c.);

Section 57 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works);

shall extend and apply to and in relation to the street works and central improvements by this Act authorised as if those enactments were in this Act re-enacted with special reference thereto.

PART VII.

LANDS.

Power to
take lands.

41. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference except the area of land shown upon the deposited plans as situate in front of the Midland Hotel and between Cheapside and Market Street:

Provided that if the Corporation shall not give notice to treat in respect of the premises numbered on the deposited plans 255 in the parish and township of Bradford within one year from the date of the passing of this Act the powers of the Corporation for the compulsory acquisition of the said premises shall cease. A.D. 1913.

42. Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not enter upon take or use compulsorily under the powers of this Act the properties numbered on the deposited plans 293 and 307 to 315 (both numbers inclusive) in the parish of Bradford. Certain properties not to be taken compulsorily.

43. If any omission misstatement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be described in the deposited plans or book of reference the Corporation may apply to two justices not being members of the council for the correction thereof after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction and if it appears to such justices that the omission misstatement or erroneous description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or erroneous description and such certificate shall be deposited with the clerk of the peace for the west riding of the county of York and a duplicate of the certificate shall also be deposited with the officer or person with whom the plans or book of reference to which it relates was deposited and such certificate and duplicate respectively shall be kept with the other documents to which it relates and subject and according to the same enactments and provisions as apply to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Corporation may enter on take hold and use those lands accordingly. Correction of errors in deposited plans and book of reference.

44. The powers of the Corporation for the compulsory purchase of the lands shown upon the deposited plans in respect of the street works shall cease after the expiration of three years and for the compulsory purchase of the lands comprised in the central improvement area after the expiration of five years from the passing of this Act. Limitation of time for compulsory purchase of lands.

45. Notwithstanding anything in this Act contained or shown on the deposited plans the Corporation shall not under the powers of this Act enter upon take or use any part of the For protection of Swan Arcade Estate Limited.

A.D. 1913. property known as the Swan Arcade Estate and numbered on the deposited plans 243 in the parish of Bradford or interfere with any access to such property in Charles Street or Brook Street.

For protection of London City and Midland Bank Limited.

46. For the protection of the London City and Midland Bank Limited their successors and assigns (in this section called "the owners") the following provisions shall notwithstanding anything contained in this Act (unless otherwise agreed in writing between the Corporation and the owners) apply and have effect (that is to say):—

Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not under the powers of this Act enter upon take or use either temporarily or permanently the property numbered on the deposited plans 242 in the parish and township of Bradford nor interfere with any rights of way or drainage connected therewith and in the event of the Corporation either acquiring or interfering with any other rights or easements connected with the said property any claim for compensation by the owners in respect thereof shall be settled in accordance with the provisions of the Lands Clauses Acts.

For protection of Bradford and District Newspaper Company Limited.

47. Notwithstanding anything in this Act contained or shown on the deposited plans the Corporation shall not under the powers of this Act enter upon take or use any part of the property of the Bradford and District Newspaper Company Limited numbered on the deposited plans 239 in the parish of Bradford or interfere with the access to the said property through Mildred Court from Market Street to Leeds Road.

Power to lease surplus lands.

48.—(1) The Corporation may when and as they shall think fit so to do demise and lease any lands acquired by them for the purposes of Part III. (Central Improvements) of this Act herein referred to as "the said lands" and not required for the purposes of the street works authorised by the said Part III. or such parts of the said lands as the Corporation shall think it expedient to let on building leases either altogether or in parcels to any person or persons who shall erect and build or covenant and agree to erect and build thereon or on any part thereof warehouses shops offices erections or buildings of such size or class of building and upon such plan and elevation and of such height and with such storeys as the Corporation shall think proper for such term or number of years as they may think fit so as there be reserved in every such demise or lease such

peppercorn or other yearly rent to be incident to the immediate reversion of the premises therein comprised as to the Corporation shall seem reasonable and so that in every such demise or lease there be contained a covenant for the payment of the rent thereby to be reserved and such other covenants on the part of the tenant or lessee to be therein named as the Corporation shall reasonably be advised or require and also a clause in the nature of a condition of re-entry on non-payment of the rent thereby to be reserved or on non-observance or non-performance of the covenants therein to be contained and on the part of the tenant or lessee to be observed and performed and every such tenant or lessee shall give such good and sufficient security for the erecting finishing and completing of every such house erection and building which he shall covenant or agree to erect within the time in which he shall have contracted to finish the same as the Corporation shall order and direct and such contract may be enforced by the Corporation accordingly.

A.D. 1913.

(2) The Corporation may if they think fit accept and take any fine or premium for the granting of any lease and may enter into any agreement for the granting of any lease of the said lands or any parts thereof and may in any such lease or agreement for a lease give to the lessee or intended lessee an option or right to purchase the fee simple in reversion in the premises leased or agreed to be leased together with all warehouses shops offices erections or buildings thereon at the time of the exercise of such option at such time and on such terms and conditions as they may think fit and on granting leases in pursuance of such agreements may alter the amount of the rents agreed to be reserved in such leases and may apportion the same and grant separate leases of any part of the hereditaments by any such agreement agreed to be leased as the Corporation think fit and may also alter or rescind any agreement as aforesaid and may accept any surrender of any lease in all respects as the Corporation shall think fit and any part of the said lands may be appropriated for and left as yards or courts to be attached to any premises agreed to be leased as the Corporation shall think fit.

49.—(1) The Corporation may sell and dispose of or cause to be sold and disposed of the ground rents to be reserved by the leases or demises or agreed to be reserved by any agreements for leases of any of the said lands made under the authority of this Act and also the fee simple in reversion in such lands

As to sale of land and ground rents.

A.D. 1913. — and in the warehouses shops offices erections or buildings thereon either altogether or in parcels by public auction or by private contract for such price or prices or sum or sums of money as the Corporation shall think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at all times erected and built thereon and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Corporation shall think fit.

(2) The Corporation may if they think it expedient so to do sell and dispose of all or any of the said lands without having previously granted or agreed to grant any lease thereof for such price or prices or sum or sums of money as the Corporation shall think reasonable and subject to such stipulations and provisions for the enjoyment thereof and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Corporation shall think fit.

(3) The Corporation may in any conveyance or other instrument whereby they convey or transfer the fee simple in possession in the said lands or any part or parts thereof or of any lands for the time being and from time to time vested in them include covenants and provisions with respect to the time within which buildings shall be erected thereon by the purchaser or his assignees or successors and as to the approval by the Corporation of the elevation and height of such buildings and the materials for constructing the same and may enforce any such covenants or provisions by condition of re-entry or by such other means as may be specified in such conveyance or other instrument and such covenants and provisions shall be by virtue of this Act enforceable accordingly :

Provided that before the Corporation re-enter on any of the said lands in pursuance of the powers of this section they shall give one month's notice to the purchaser or owner of the land (as the case may be) in respect of which such power of re-entry is proposed to be exercised by leaving the same at his last known place of abode and such purchaser or owner or other person interested in such land may apply to the High Court for relief and the court may refuse relief or grant relief either unconditionally or subject to such terms as the court may think fit.

Power to
Corporation
to make

50. The Corporation may enter into and carry into effect agreements with any person being the owner of or interested

in any lands houses or property abutting on any portion of the central improvement area with respect to the sale or exchange by the Corporation to or with such person of any lands or property (including any street or thoroughfare or any part of a street or thoroughfare appropriated by the Corporation under the powers of the said Part III. of this Act and not required for the purposes thereof) for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Corporation for the purposes of the said Part III. of this Act.

A.D. 1913.
—
agreements
with owners
of property
&c.

51.—(1) The Corporation in lieu of selling or disposing of any of the lands acquired by them for the purposes of Part III. of this Act and not required for the purposes of constructing any street may erect and maintain upon such lands houses warehouses offices and shops and may enter into and carry into effect contracts and agreements with any company or person in relation to the erection and maintenance of such buildings.

Power to
erect and let
buildings.

(2) No expenditure shall be incurred by the Corporation for the purpose of this section unless the amount of such expenditure shall have been previously sanctioned by the Local Government Board which sanction the Local Government Board are hereby authorised to give.

(3) The Corporation may let either from year to year or for a less period or lease for a term at a rent not less than rack rent or sell exchange or otherwise dispose of any such buildings and may execute and do any deed act or thing requisite or proper for effectuating any such letting lease sale exchange or other disposition.

52. The Corporation may for the purposes of this Act in addition to the lands they are authorised to acquire and hold under the powers of the former Acts and under the other powers of this Act from time to time by agreement acquire in fee either by purchase or by way of exchange or otherwise any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder thereover or thereupon (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Corporation shall not deal with any such lands so as to create or permit a nuisance.

Power to ac-
quire addi-
tional lands
by agree-
ment.

A.D. 1913.

Incorporation of provisions of Act of 1902 relating to lands.

53. The following enactments (that is to say):—

Of the Act of 1902—

Section 49 (Consideration for acquisition of land);

Section 50 (Power to grant easements &c. by agreement);

Section 52 (Power to retain sell &c. lands);

Section 53 (Proceeds of sale of surplus land);

Section 54 (Proceeds of sale of lands);

Section 55 (Corporation may use their own lands for purposes of Act);

shall extend and apply to and in relation to the lands by this Act authorised to be acquired as if those enactments were in this Act re-enacted with special reference thereto.

Compensation in case of recently altered buildings.

54. In settling any question of disputed purchase money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the nineteenth day of November one thousand nine hundred and twelve if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Owners may be required to sell parts only of certain lands and buildings.

55. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of this Act or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise : A.D. 1913.
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment

A.D. 1913.
—

thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the inquiry shall be borne and paid by the owner :

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART VIII.

TROLLEY VEHICLES.

Power to
use trolley
vehicles
upon certain
routes.

56. The Corporation may use trolley vehicles upon the following routes in addition to any routes upon which they are already authorised to use trolley vehicles (viz.) :—

Route (A) From the tramway terminus at Thornton along Thornton Road to the city boundary at Keelham :

Route (B) From the tramway terminus at Greengates along New Line Leeds Road and Albion Road to the tramway terminus at Idle : A.D. 1913.

Route (C) From the tramway terminus at Duckworth Lane along Little Lane Toller Lane Leylands Lane and Highgate to the tramway terminus at Heaton :

And the provisions of Part III. and Part IV. of the Act of 1910 shall apply to those routes in like manner as they apply to the route mentioned in section 13 of that Act and as if those provisions were re-enacted in this Part of this Act and made applicable to the said routes and to the exercise of the powers of this Part of this Act.

PART IX.

INFECTIOUS DISEASE.

57.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

Removal of person suffering from pulmonary tuberculosis to hospital.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion make good any probable financial loss falling upon the relatives of or those actually dependent upon any person so suffering occasioned by

A.D. 1913. — the removal of any such person to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the before-mentioned loss and shall not make an order unless they are satisfied that the Corporation will make good such loss.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force within the city at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament which order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875.

Power to medically examine inmates of common lodging-houses where dangerous infectious disease is supposed to exist.

58. Whenever the medical officer shall report in writing to the Corporation that there is a prevalence of dangerous infectious disease in the city or any adjoining county or neighbouring county borough and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the city by persons resorting to common lodging-houses the Corporation may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and

subject as hereinafter provided the following provisions shall thereupon be in force within the city for such period as the Corporation having regard to the circumstances of the case shall in the resolution determine (that is to say):—

A.D. 1913.

The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation may exist or has recently existed in any common lodging-house in the city medically examine any person found in any common lodging-house in the city with a view to ascertain whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty of not exceeding forty shillings for each offence:

A copy of every such resolution shall forthwith be sent by the Corporation to every keeper of a registered common lodging-house in the city and to the Local Government Board:

Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board:

A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

59.—(1) The occupier of any building in the city which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to be furnished to medical officer and penalty for furnishing false information.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

A.D. 1913.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Persons to furnish names of laundrymen to whom clothes &c. from infected houses are sent.

60.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by subsection (a) of section 3 (Notification of infectious disease) of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Removal of body of person dying of infectious disease.

61. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall have died in the city of such disease and the medical officer shall have given notice thereof to the person responsible for the conduct of the burial of the body of such deceased person it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

PART X.

SANITARY.

Amendment of section 54 of Act of 1910.

62. After the passing of this Act any person who shall be convicted of an offence under the provisions of section 54 (For regulating manufacture and sale of ice-cream &c.) of the Act of 1910 (other than an offence under subsection (4) of that section) shall be liable to a penalty not exceeding for the first

offence forty shillings and for each subsequent offence five pounds. A.D. 1913.

63. Any person who lets or permits the occupation by any person or family of any part of a house as a separate house which has not been provided to the reasonable satisfaction of the Corporation with sufficient sanitary and domestic accommodation for the use of the person or family by whom it is proposed that any such part of a house shall be occupied shall be liable for each offence to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings. The provisions of this section shall come into force on the first day of January one thousand nine hundred and fourteen and the Corporation shall cause public notice to be given of the provisions of this section by advertisement published once in each of three successive weeks in at least two newspapers published or circulating in the city in the months of August and September or one of them immediately preceding the date when such provisions shall become operative and shall also send a circular notice to every owner of property whose name shall be upon the rate books of the Corporation.

Prohibiting use of houses by more than one family in certain cases.

64.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been voluntarily discontinued for a period of six months or upwards or if the building (forming part of any premises) on which it is for the time being carried on is enlarged without the consent in writing of the Corporation but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area or by reason only of such trade business or manufacture having been temporarily discontinued owing to strikes or lockouts. Provided that in the case of any such removal as aforesaid the Corporation shall not withhold their consent if the situation and character of the premises to which the offensive trade is proposed to be removed are suitable for the purpose.

As to offensive trades.

A.D. 1913.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on any offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) The expression "offensive trade" in this section means any trade which is for the time being an offensive trade within the meaning of the Public Health Acts.

(5) This section shall not apply to the trade business or manufacture of a soap boiler so long as it is carried on in accordance with the provisions of the Public Health Act 1875 and is merely ancillary to the trade or business of a woolcomber and not carried on separately or for direct profit. Provided that the exemption granted by this subsection shall cease to have effect as regards any such soap-boiling business which shall be proved to a court of summary jurisdiction to be carried on in such a manner as to create a nuisance or to cause annoyance to residents in the city.

Overcrowd-
ing in small
houses.

65.—(1) If the medical officer has reason to believe that any dwelling-house or separate tenement in the city comprising any number of living rooms and bedrooms not being more than four in all is used for the accommodation of more persons than having regard to the health and well being of the occupants should be accommodated therein the medical officer or inspector of nuisances may at any time between the hours of nine in the morning and six in the evening enter such dwelling-house or tenement and may measure in cubic feet the space (exclusive of lobbies closets and presses and of recesses not exceeding four feet in depth and not having a separate window therein and not perfectly clear from floor to ceiling and from wall to wall and exclusive also of recesses in which there is any fixture whatever) contained in each such room and if the cubic contents of any such room do not exceed one thousand cubic feet may affix in some prominent position within the dwelling-house or tenement a plate or a ticket on which shall be marked the number of such cubic feet and the number of persons exceeding the age of eight years who without a breach of the provision

of subsection (2) of this section may sleep in each room and any person who obliterates defaces removes or alters such marking or ticket shall be liable to a penalty not exceeding ten shillings. Provided that if entry to any such dwelling-house under the provisions of this section is refused by the person having the custody of such dwelling-house or any person acting in his behalf any justice may upon the application of the Corporation or the medical officer or inspector of nuisances grant a warrant to the medical officer or inspector of nuisances to enter such dwelling-house during the hours aforesaid for the purposes of this section and any person who obstructs the medical officer or inspector of nuisances in the performance of his duty under such warrant and this section shall be liable to a penalty not exceeding five pounds.

(2) If any room in any such dwelling-house or tenement is used for the purposes of sleeping in by a greater number of persons than in the proportion of one person of the age of eight years or upwards for every four hundred cubic feet of space or of one person of an age less than eight years for every two hundred cubic feet of space ascertained to be contained therein by measurement as hereinbefore provided or by a greater number of persons than is marked on the plate or ticket affixed therein in pursuance of subsection (1) of this section every person being an occupier of such dwelling-house and so using it or suffering it to be used shall be liable to a penalty not exceeding twenty shillings for every day or part of a day during which it is used or suffered to be used and the medical officer or an inspector of nuisances may from time to time enter such dwelling-house if he have reason to believe that the provisions of this section are being contravened.

66.—(1) Where in the opinion of the Corporation the introduction of any petrol or other inflammable liquid into a sewer whether directly or through any drain or channel communicating therewith either does or may involve any danger or risk of injury to Corporation employees or be injurious to the structure or materials of the sewers the Corporation may by order absolutely prohibit any such liquid being caused or permitted either directly or indirectly to flow or enter or to be carried into any sewer.

Orders for
exclusion of
petrol &c.
from sewers.

(2) The Corporation may at any time cause a copy of any such order to be served upon any person who may in their opinion be acting in contravention thereof and if any such

A.D. 1913. — person dispute the reasonableness of any such order as applicable to himself or any works or premises under his control he shall be entitled to appeal as hereinafter in this Act provided.

(3) Any person who shall fail to comply with the terms of any such order after service thereof upon him or in the event of an appeal with the determination of the tribunal shall be liable to a penalty of not exceeding twenty pounds for every such default and to a daily penalty not exceeding five pounds.

PART XI.

STREET AND BUILDING REGULATIONS.

Alterations
of building
regulations.

67.—(1) The regulations set out in the First Part of the Third Schedule to this Act shall to the extent indicated in that schedule supersede the regulations set out in the Fourth Schedule to the Act of 1871 the Second Schedule to the Act of 1878 the Second Schedule to the Act of 1881 and the Fourth Schedule to the Act of 1910 respectively and the regulations set out in the Second Part of the said schedule shall apply and have effect in addition to the regulations now in force within the city and shall be enforceable as if the said regulations had been included in the Fourth Schedule to the Act of 1871 as amended by subsequent Acts and this Act.

(2) All acts done or omitted in contravention of the new or altered regulations set out in the said Third Schedule to this Act shall be subject to the same penalties as if such regulations had been set out in the Fourth Schedule to the Act of 1871 but in proceedings for the recovery of any such penalty it shall be sufficient to allege that the offence has been committed against this Act.

Sanitary
conveniences
may be
erected on or
projected
over open
space behind
buildings.

68. It shall be lawful for the Corporation in any case where in their opinion it would conduce to the better sanitary equipment of any dwelling-house in respect of which there shall be sufficient open space at the back or side of such house to permit the erection in such open space of any scullery bath watercloset slop closet or other sanitary convenience or to permit the building out from any such house in or over such open space of any such sanitary convenience and notwithstanding that such space has been required to be left open under the building regulations in respect of such house.

69. Where under the provisions of this Act or the former Acts the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

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—
Apportionment of expenses in case of joint owners.

70. Nothing contained in this Part of this Act or in any regulations thereunder shall extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by the Lancashire and Yorkshire Railway Company the Great Northern Railway Company or the Midland Railway Company as a part of or in connection with their railway under any Act of Parliament.

Exemption of buildings of Lancashire and Yorkshire Great Northern and Midland Railway Companies.

PART XII.

MISCELLANEOUS POWERS.

71. A court of summary jurisdiction may on conviction by them of any dealer in old metal or marine store dealer order the registration of such dealer to be suspended for such period as the court may think fit.

Suspension of registration of marine store dealer &c.

72.—(1) The provisions of subsection (2) of section 53 (Prevention of smoke and grit) of the Act of 1910 shall be deemed to apply to any person having the control of any furnace to which the said section applies Provided that no person other than the owner or occupier of the premises shall be liable to any penalty for using or suffering to be used a furnace not constructed upon the principle of consuming and so as to consume or burn its own smoke Provided also that nothing herein contained shall be deemed to apply to a director or board of directors of an incorporated company.

Amending section 53 of Act of 1910.

(2) The notification required to be given under the provisions of subsection (6) of the said section 53 shall be in writing and shall be deemed to be duly given if addressed to the name or trade name of the person firm or company for whom it is intended and served at the premises where the furnace in respect of which it is given is situate upon any person having at the time of service the control or management of such premises Provided that in the case of a company having a

A.D. 1913. — registered office in the city the notification before referred to shall be served in manner provided by the Companies (Consolidation) Act 1908.

(3) No penalty shall be inflicted on an owner or occupier under subsection (2) of the said section 53 where the furnaces are constructed in manner provided by subsection (1) of the said section and the emission of smoke was due to the act or default of a stoker engineer or other person employed by such owner or occupier.

As to entry upon premises for purpose of inspecting furnaces &c.

73. Any person who shall have given notification as aforesaid in respect of any alleged offence against section 53 of the Act of 1910 and any person authorised by him in writing or accompanying him may enter the premises where the alleged offence has occurred for the purpose of inspecting and may inspect any furnace or plant therein to which the said section 53 of the Act of 1910 relates Provided that before such entry the consent of the owner or occupier of the premises shall have been given or if not given within twenty-four hours after a written application for the same has been made an order authorising such entry shall have been obtained from a court of summary jurisdiction who may grant or refuse such order upon such terms and subject to such conditions as such court may deem proper after hearing the parties.

Preventing misuse of conditioning house certificate.

74. If any person having obtained a certificate from the Conditioning House in accordance with the provisions of Part I. (As to Conditioning House) of the Act of 1887 as amended by section 63 of the Act of 1910 shall publish or use such certificate or any copy thereof or extract therefrom for purposes of advertisement or for extolling any goods or material other than the actual goods or material to which such certificate relates the Corporation may refuse to issue any further certificates to such person and may call in and cancel any certificate so published or used.

Corporation may appoint stopping and starting places for tramway cars and trolley vehicles.

75. The Corporation may within the city and beyond the city in any district in which they work tramways appoint the stations and places from which the tramway cars and trolley vehicles of the Corporation shall start or at which they shall stop for the purpose of taking up or setting down passengers.

Shelters or waiting rooms in connection

76. The Corporation may erect and maintain shelters or waiting-rooms for the accommodation of passengers using the tramways and trolley vehicles of the Corporation and may use

for that purpose portions of the public streets or roads with the consent of the local authority and road authority in whom the same are vested or the public parks under the jurisdiction of the Corporation and the powers of the Tramways Act 1870 enabling the Corporation to make byelaws shall extend to and shall enable the Corporation to make and enforce byelaws for the regulation use and management of any such shelters or waiting-rooms and the provisions of that Act shall apply accordingly.

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with tram-
ways &c.

77. Notwithstanding anything contained in the sections of this Act whereof the marginal notes respectively are "Corporation may appoint stopping and starting places for tramway cars and trolley vehicles" and "Shelters or waiting-rooms in connection with tramways &c." no starting or stopping place shall be appointed and no shelters or waiting-rooms shall be erected or maintained in any street or road so as to cause interference with or render less convenient the access to or exit from any station of the Lancashire and Yorkshire Railway Company the Great Northern Railway Company or the Midland Railway Company Any difference arising between the Corporation and the Lancashire and Yorkshire Railway Company the Great Northern Railway Company or the Midland Railway Company as the case may be shall be determined by an arbitrator to be agreed upon by the respective parties or failing such agreement to be appointed by the Board of Trade on the application of either party.

For protec-
tion of Lan-
cashire and
Yorkshire
Great North-
ern and Mid-
land Rail-
way Com-
panies.

PART XIII.

SUPERANNUATION FUND.

78. In this Part of this Act and subject to the provisions thereof—

Definitions
in this Part
of Act.

"Appointed day" means the day appointed by the Corporation for this Part of this Act to come into operation;

"Officer" or "servant" means an officer or servant at the appointed day in the permanent and exclusive service of the Corporation or of the city justices or thereafter appointed and in each case designated an officer or servant in an established capacity for the purposes of this Part of this Act by a resolution of the Corporation passed or to be passed and whether in receipt of salary or wages but not an officer or servant who shall be entitled to superannuation under the Police Act 1890;

A.D. 1913.

“Service” means service rendered after the date appointed for this Part of this Act to come into operation by an officer or servant who shall then have attained the age of twenty years and have been designated an officer or servant in manner aforesaid or after he shall have attained that age and have been so designated and includes service during the period of prior service;

“Period of prior service” means service whether with the Corporation or with any authority or body to whom the Vestries Acts 1818 to 1853 the Public Health Acts the Public Libraries Acts 1892 and 1893 the Baths and Washhouses Acts 1846 to 1899 the Local Government Act 1888 the Local Government Act 1894 the Union Assessment Committee Acts the Municipal Corporations Act 1882 the Poor Law Officers’ Superannuation Act 1896 the Education Acts 1870 to 1902 the Technical Instruction Acts or one or more of such Acts applied or applies for such period or periods prior to the appointed day or to designation as aforesaid not exceeding ten years as the Corporation may fix by resolution having regard to the report of the actuary hereinafter referred to;

“Fund” or “superannuation fund” means the superannuation fund established by the Corporation under the provisions of this Part of this Act.

Title of
officers and
servants to
superannua-
tion allow-
ances.

79.—(1) Subject to the provisions of this Part of this Act every officer or servant who shall be a contributor to the superannuation fund and shall have completed ten years’ service and who shall become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen’s Compensation Act 1906) or of old age or shall have attained the age of sixty years and have completed an aggregate service of forty years or shall have attained the full age of sixty-five years shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale laid down in this Part of this Act.

(2) An officer or servant shall not be entitled to an allowance on the ground of old age unless he has completed the full age of sixty years.

(3) Where an officer or servant to whom this Part of this Act applies has attained the age of sixty-five years he shall cease to hold his office or employment and shall upon so ceasing to hold his office or employment receive the superannuation allowance to which he may be entitled under this Act Provided that the Corporation may by resolution and with the concurrence of such officer or servant extend his period of service for one year and so from time to time as they may deem expedient. A.D. 1913.

80. No service during the period of prior service shall be reckoned as service—

Cases in which prior service is not to be reckoned.

(a) In the case of any officer or servant who is unable to show to the satisfaction of the Corporation within a period of three months from the appointed day or the date of his designation as the case may be that he has been in the permanent and exclusive employment of any body or authority service with whom may be included in the period of prior service; or

(b) In the case of any officer or servant who within three months from the date of the passing of this Act or the date of designation as the case may be shall notify in writing to the Corporation his desire that service during the period of prior service shall not be reckoned.

81. Every officer or servant who is entitled to reckon service during any period of prior service shall (subject to the provisions of this Part of this Act) contribute to the fund such a sum as calculated at the appropriate rate of contribution to the fund will represent contributions at that rate upon the salary or wages of which he is in receipt at the appointed day for the number of years service which he is entitled to reckon together with compound interest thereon at the rate of three pounds ten shillings per centum per annum for that number of years if such service shall have been with the Corporation but in respect of any period of prior service so reckoned which shall have been rendered other than with the Corporation such officer or servant shall contribute an amount calculated as aforesaid but with the addition of one per centum to the appropriate rate of contribution before referred to and the liability imposed by this section shall be discharged within three months of the date of the certificate of the treasurer of

Contribution to be made in cases where prior service is reckoned.

A.D. 1913. the amount payable or by instalments spread over such period as the Corporation shall determine.

Obligation of officers and servants to contribute.

82. Subject to the provisions of this Part of this Act every officer or servant shall as from the appointed day contribute annually to the fund at such rate not exceeding (save as hereinafter provided with respect to teachers) four pounds per centum per annum on the amount of his salary or wages as the Corporation shall from time to time determine and such contribution shall be from time to time deducted from the salary or wages payable to him.

Scale of superannuation allowances.

83. The scale for superannuation allowances shall subject to the section of this Act of which the marginal note is "Fixing maximum superannuation allowance" be as follows (that is to say):—

Such an annual allowance as shall be equal to one sixtieth of the average annual amount of the salary or wages of the officer or servant entitled thereto during the five years ending on the day which immediately precedes the day on which he ceases to hold his office or employment multiplied by the number of complete years comprised in the service of such officer or servant:

Provided that in no case shall any such allowance exceed forty sixtieths of the said average annual amount of the salary or wages:

Provided also that where an officer or servant is unable by reason of physical or mental infirmity to perform the duties for which he was appointed but is employed at a reduced salary or wages he may if the Corporation allow contribute to the superannuation fund on the basis of the higher salary or wages and be entitled to the superannuation allowance on such higher salary or wages.

Fixing maximum superannuation allowance.

84. In the case of any officer whose salary and emoluments shall exceed the sum of five hundred pounds per annum the salary of such officer for the purpose of contribution under this Part of this Act and for the purpose of benefit under this Part of this Act shall be deemed to be five hundred pounds per annum.

Employees over certain age not to be chargeable to fund.

85. Any officer or servant who at the appointed day shall have reached the age of fifty-five years shall if he become a contributor to the fund be entitled to a superannuation allowance in accordance with the scale laid down in this Part of this

Act but such superannuation allowance shall in lieu of being paid out of the superannuation fund be paid out of and be chargeable upon the fund or rate out of which the salary of such officer shall have been paid previously to the date when he shall become entitled to such allowance. A.D. 1913.

86. Where a person in receipt of a superannuation allowance under this Part of this Act is appointed to any office or employment by the Corporation or by any authority where his salary or wages shall be paid directly or indirectly out of any rate or rates or out of any public moneys such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages thereof are equal to or in excess of the amount of such allowance and if less then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency. Case of subsequent appointment.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original superannuation allowance.

87. An officer or servant who has not become entitled to a superannuation allowance and who by reason of a reduction of staff or abolition or alteration of office or employment resigns or loses his office or employment or ceases to hold his office or employment by reason of bodily injury not occasioned by his own default shall be entitled to receive out of the superannuation fund a sum equal to the amount of all his contributions to such fund (including any amount not being interest contributed by him in respect of service during the period of prior service) together with compound interest thereon at the rate of three pounds per centum per annum but if he subsequently be again appointed to be an officer or servant his service previous to his ceasing to hold office or employment as aforesaid shall not be reckoned as or be service for the purposes or within the meaning of this Part of this Act unless upon his fresh appointment he pays to the fund the amount so received. Return of contributions.

88.—(1) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under the provisions of this Part of this Act the Corporation shall pay to his legal personal representatives out of the superannuation fund a sum equal to the whole of the contributions including any amount contributed by him in respect of service during the period of prior service but without interest thereon. Return in case of death.

A.D. 1913.

(2) In the event of the death of an officer or servant after he has become entitled to superannuation allowance and before he shall have received the allowance to which he would have been entitled for the first year after he has so become entitled his legal personal representatives shall be entitled to the superannuation for such year or the balance thereof after deducting any payments which may have been made to the officer or servant so dying.

Superannuation fund.

89.—(1) The Corporation shall establish and administer a superannuation fund to which shall be carried and credited—

- (A) A sum hereinafter called “the primary annual contribution” to be raised annually in and by the city fund and other the several revenues of the Corporation and such primary annual contribution shall bear such a proportion to the total salaries of the officers and servants contributing to the fund as hereinafter provided and shall be paid out of the city fund and other such revenues proportionately to the amount of the salaries of the contributors chargeable thereto respectively;
- (B) All percentage amounts of salary or wages deducted and other the sums contributed by the officers and servants as in this Part of this Act provided;
- (C) All dividends or interest arising out of the investment of the superannuation fund or any part thereof; and
- (D) Such amount out of the city fund and other the several revenues of the Corporation in proportion to the amount of the salaries of the contributors to the fund chargeable thereto respectively as may be required to meet any deficiency of the superannuation fund.

(2) The following shall be charged upon the superannuation fund (namely):—

- (A) Superannuation allowances made in pursuance of this Act;
- (B) Contributions or parts of contributions returned or paid in pursuance of this Part of this Act.

Actuarial investigation.

90. Within six months after the appointed day and at the expiration of every subsequent period of seven years the condition of the superannuation fund shall be submitted by the Corporation to an actuary being a member either of the Institute

of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion in his opinion the primary annual contribution shall bear to the total salaries of the officers and servants contributing to the fund so that such proportion shall at all times be as nearly constant and vary as little as may be and so that without further recourse to the city fund or other the several revenues of the Corporation the superannuation fund as constituted under paragraphs (A) (B) and (C) of subsection (1) of the section of this Act of which the marginal note is "Superannuation fund" shall be solvent (having regard to existing and prospective liabilities) and for the then ensuing septennial period the primary annual contribution shall be the proportion so certified and shall be paid to the superannuation fund accordingly The Corporation shall furnish to the Local Government Board the reports of the actuary made to them under the provisions of this section.

A.D. 1913.

91. At the end of each financial year the surplus of the annual income of the superannuation fund above the expenditure thereout shall be invested in statutory securities and the income thereof paid into that fund.

Investment of surplus of fund.

92. A copy of the provisions of this Part of this Act shall within one month after the passing of this Act be sent or delivered to each officer or servant in the service or employment of the Corporation at the date of the passing of this Act and any such officer or servant who shall within three months after the receipt of such copy signify in writing to the Corporation that he does not desire to avail himself of the provisions of this Part of this Act shall not be required to make any contributions or to submit to any deduction from his salary or wages under this Part of this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Part of this Act.

Provisions of this Part of Act not to be compulsory upon existing officers.

93. The following provisions shall have effect with respect to and for the benefit of any teacher (hereinafter in this section called "a teacher") who at the passing of this Act is or hereafter shall be permanently and exclusively employed by the Corporation as the local education authority for the city or is permanently and exclusively employed in any public elementary school in the city (whether provided by the Corporation as the

As to teachers.

A.D. 1913. — local education authority or not so provided) or is permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purpose of Part II. of the Education Act 1902 (that is to say):—

- (1) In this Part of this Act and subject to the provisions of this section the expression “officer” or “servant” shall include a teacher:
- (2) Any period of service by a teacher prior to the day appointed to be the appointed day under the Education Act 1902 in a school which has not been provided by the local education authority shall not be reckoned as and shall not be service for the purposes of this Part of this Act:
- (3)—(A) In the application of this Part of this Act to any teacher to whom the Elementary School Teachers (Superannuation) Act 1898 and the Elementary School Teachers (Superannuation) Act 1912 (in this section called “the Teachers Superannuation Acts”) apply the amount of the superannuation allowance to be made to a teacher under the provisions of this Part of this Act shall be complementary to the amount of the deferred annuity to which such teacher is entitled and of the superannuation allowance which may be granted to such teacher under the Teachers Superannuation Acts (in this section hereinafter called “the benefits under the Teachers Superannuation Acts”) and the salary or wages in respect of which such teacher shall contribute to and receive an annual allowance from the superannuation fund shall be so much (if any) of the actual salary or wages for the time being receivable by him as shall remain after deducting from such last-named salary or wages a sum equal to one and a half times the amount of the benefits under the Teachers Superannuation Acts receivable by him Provided that the total amount of the contributions to be so made by him shall be at such rate or rates per centum per annum on the salary or wages calculated as aforesaid as the Corporation on the report of the actuary shall determine to be proper so that the total amount of the contributions made by a teacher at the time when he

shall become entitled to an annual allowance from the superannuation fund shall as nearly as may be bear the same ratio to the amount of such allowance as the total amount of the contributions made at the like time by any other officer or servant with a like service shall bear to the amount of the annual allowance receivable by such officer or servant: A.D. 1913.

(B) For the purpose of giving effect to the provisions of this subsection the Corporation shall by resolution from time to time determine the amount of the benefits under the Teachers Superannuation Acts and prescribe a scale determining the rate or rates of contribution aforesaid:

(4) If at any time hereafter under the said Act of 1898 or by reason of the passing of any general Act of Parliament whether in this or any subsequent session of Parliament provision or increased provision shall be made for the superannuation of teachers the Corporation shall by an amending resolution make such provision as shall be necessary to meet the altered circumstances and by such resolution shall provide for the return to any teacher or the credit to him on account of future contributions to the superannuation fund of the amount of any payments made by him to such fund before the date of the amending resolution in respect of any part proportion or amount of his salary or wages in excess of the part proportion or amount in respect of which as determined by the said amending resolution he will thereafter be entitled to contribute to and receive an annual allowance from the superannuation fund:

(5) No part of any benefit or superannuation allowance received by any teacher from the superannuation fund shall be deemed to be paid out of or received from public money within the meaning of the said Act of 1898 or any rules made thereunder or otherwise.

94. The superannuation fund shall not come into operation until the provisions of this Part of this Act shall have been registered as the rules of a society under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are

Superannua-
tion fund to
be regis-
tered under
Friendly So-
cieties Act.

A.D. 1913. applicable and are not inconsistent with the provisions of this Part of this Act shall apply (a) as if the provisions of this Part of this Act were the rules of a society to which that Act applies (b) as if the Corporation were the trustees of such society (c) as if the superannuation fund were the funds of such society and (d) as if contributors to the fund were the members of such society :

Provided that the powers of sections 70 71 73 78 and 79 of the said Act shall not be exercised without the consent of the Corporation and that the Corporation shall send to the registrar under the said Act a copy of any certificate and report made in pursuance of the section of this Act of which the marginal note is "Actuarial investigation."

As to putting into force provisions of this Part of Act.

95. This Part of this Act shall not come into operation unless and until the Corporation shall have obtained a report from an actuary (being a member either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland) appointed by them as to what the amount of the primary annual contribution as by this Part of this Act provided should be and the Corporation after consideration of such report may appoint a day for this Part of this Act to come into operation subject to compliance with the provisions of the section of this Act of which the marginal note is "Superannuation fund to be registered under Friendly Societies Act."

PART XIV.

FIRE AND WORKMEN'S COMPENSATION INSURANCE FUNDS.

Fire insurance fund.

96.—(1) The Corporation may if they think fit establish a fund to be called the fire insurance fund with a view of providing a sum of money which in the event of a fire shall be available for the purpose of reconstructing rebuilding repairing restoring replacing and making good any loss or damage by or in consequence of fire to any buildings works and property belonging or on loan to or under the care custody or control of the Corporation.

(2) In each year after the establishment of the fire insurance fund the Corporation shall pay into that fund such a sum as shall in their opinion be equal to the aggregate amount of the premiums payable in the event of the Corporation insuring such buildings works and property as aforesaid in some

public fire insurance office in England but when the fund shall amount to the sum of one hundred thousand pounds the Corporation may if they think fit discontinue such yearly payments but so that if the fund is at any time reduced the Corporation shall recommence and continue the yearly payment until that fund be restored to the sum of one hundred thousand pounds. Provided that nothing in this Act shall affect the power of the Corporation to insure any of such buildings works and property against loss or damage by fire in any public insurance office in England and if the Corporation so insure any of such buildings works and property the yearly sums payable to the fire insurance fund shall during the continuance of any such insurance be reduced by the amount of the premiums payable in respect of such insurance.

(3) The Corporation shall provide the yearly payments aforesaid by contributions from the rents and revenues of the lands buildings and undertakings or from the respective funds or rates which if the buildings works and property were insured in a public insurance office would be properly chargeable with the payment of the premiums of such insurance and if there be no rents or revenue specially chargeable then by contributions from the city fund and city rate.

(4) Except so far as the fire insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses from or in consequence of fire all moneys for the time being standing to the credit of the fire insurance fund shall be invested in statutory securities and the interest and annual proceeds arising from those securities shall be invested and accumulated until the fund amounts to the sum of one hundred thousand pounds and when and so long as the fund amounts to that sum the interest and annual proceeds of the securities shall be carried to the credit of the fund or funds to which the same are properly applicable.

(5) If at any time and from time to time the fire insurance fund shall be insufficient to make good any loss or damage sustained by the Corporation by or in consequence of fire they may with the sanction of the Local Government Board and on such security as the Board may prescribe borrow at interest under and subject to the provisions of the section of this Act of which the marginal note is "Power to borrow" such sums of money as will be necessary to make up the deficiency.

A.D. 1913.

Power to
create acci-
dent fund.

97. The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the common law the Employers' Liability Act 1880 the Workmen's Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be formed by annually appropriating thereto such sums out of any of their revenues as they from time to time deem expedient and such sums shall be invested at compound interest in or upon any statutory securities and accumulated until the same shall amount to the sum of twenty-five thousand pounds Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of twenty-five thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount:

Provided that all such sums shall be provided out of the various funds of the Corporation in proportion to the amount of wages or salaries paid to the employees of the Corporation out of such funds respectively.

PART XV.

RATES AND RATING.

Rates pay-
able by
owners of
small pro-
perty.

98. No allowance shall be made to the owner of any rateable property in the city in respect of which the owner is rated instead of the occupier in any case where the amounts due in respect of rates are not paid within six months of the making of such rate or such further time as the Corporation may from time to time prescribe.

Summary re-
covery of
rates.

99. Any complaint in respect of the summary recovery of any sum of money due in respect of any rate levied by or in pursuance of the order or precept of the Corporation shall be deemed validly made if made within twelve calendar months from the time when the matter of such complaint arose.

Assistants to
overseers.

100.—(1) The Corporation may appoint and remove such officers as they may deem necessary to assist the overseers of

the several parishes within the city in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate and other local rates and funds properly chargeable with such salaries and expenses. A.D. 1913

(2) All officers other than existing officers so appointed shall give such security for the due performance of their duties as may be required by the Corporation and such security shall be deposited with the Corporation.

(3) Provided that if by reason of anything done by the Corporation under the provisions of this section the respective assistant overseers in office at the passing of this Act for the townships of Eccleshill and Idle shall suffer any direct pecuniary loss they shall be entitled to receive compensation from the Corporation and the amount thereof shall be ascertained under and in accordance with the terms of section 120 of the Local Government Act 1888 except that as respects appeal under subsections (4) and (6) of that section the Local Government Board shall be substituted for the Treasury.

101. For the purpose of giving effect to the partial exemption from rating provided for under section 43 of the Act of 1903 the assessment committee of the Bradford Union or the North Bierley Union as the case may be shall if the Corporation require show on every valuation list in respect of any properties entitled to such partial exemption the value of the portion of property so entitled separately from the value of the portion of such property not so entitled: Division of valuation list.

Provided that a division of valuation for the purposes of this section shall not be deemed to confer any right of appeal to petty or quarter sessions in respect of any portional value but any such appeal shall relate to the assessment as a whole.

PART XVI.

FINANCIAL PROVISIONS.

102.—(1) The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of any of the former Acts the Public Health Acts or any public general Act borrow at interest on the following securities Power to borrow.

A.D. 1913. — and for the following purposes the following sums (that is to say) :—

On the security of the city fund and city rate—

For paying the costs of this Act the sum requisite for that purpose :

On the security of the tramway revenue and city fund and city rate—

For the overhead equipment for trolley vehicles four thousand nine hundred and fifty pounds ;

For trolley vehicles four thousand nine hundred and fifty pounds ;

For depôts and car sheds in connection with the trolley vehicle system one thousand three hundred and twenty pounds ;

For extending and enlarging the Conditioning House forty thousand pounds and such further sums as the Local Government Board may from time to time sanction :

On the security of the district fund and general district rate—

For street improvements other than the central improvements including the purchase of lands two hundred thousand five hundred and thirty pounds ;

For the purposes of the central improvements including the purchase of lands seven hundred and ninety-one thousand two hundred and fourteen pounds and for any such purposes and also for the erection of buildings on lands acquired for or in connection with the central improvements such sum or sums as the Local Government Board may from time to time sanction :

On the security of the revenue of the water undertaking and the city fund and city rate—

(a) For the purposes of the reservoir and works by this Act authorised six hundred and fifty thousand pounds ;

(b) For the purposes of the water undertaking one hundred thousand pounds.

(2) The Corporation may by way of collateral security include the city fund and city rate in all or any mortgages or charges created under the powers of this Act. A.D. 1913.

(3) In calculating the sums the Corporation may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned. The powers of the Corporation as to borrowing and re-borrowing shall not be restricted by any of the provisions of any of the Public Health Acts.

(4) As regards all rates to be laid for the purposes of this Act relating to water or for purposes of moneys borrowed under this Act in respect of the exercise of the powers of section 17 of the Act of 1873 and as regards any increase in the city rate by reason of its being included in any mortgage or charge created under the powers of this Act by way of collateral security the occupiers of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance and of any land used as arable meadow or pasture ground only or as woodlands market gardens or nursery grounds and of any land covered with water or used only as a canal or towing-path and the owners of any tithes or tithe commutation rentcharge shall be assessed to such rates in respect of the same in the proportion of one fourth part only of the net annual value thereof.

103. The Corporation may with the sanction of the Local Government Board borrow at interest on the security of the city fund such sum or sums not exceeding in the whole fifty thousand pounds as they may require for the payment of compensation payable by them in respect of the exercise of the powers conferred upon them by section 17 (Defining line of streets) of the Act of 1873. Power to borrow for purposes of section 17 of Act of 1873.

104.—(1) The Corporation shall repay all moneys borrowed under the powers of this Act within the following periods (in this Act referred to as "the prescribed periods") from the date of the borrowing of the said moneys respectively (that is to say):— Period for repayment &c.

As to moneys borrowed for paying the costs of this Act within any period not exceeding five years from the date of the passing of this Act:

As to moneys borrowed for the overhead equipment of and the provision of trolley vehicles depôts and sheds in

A.D. 1913.

connection therewith within any period not exceeding fifteen years :

As to moneys borrowed for and in relation to the acquisition of lands required for the street works and the central improvements within any period not exceeding sixty years :

As to moneys borrowed for the purposes of the street works and central improvements (other than lands) within any period not exceeding forty years :

As to moneys borrowed for the purposes of the reservoir and works by this Act authorised within any period not exceeding sixty years and as to moneys borrowed for the general purposes of the water undertaking within forty years :

As to money borrowed for the purpose of extending and enlarging the Conditioning House within any period not exceeding forty years.

(2) Any moneys borrowed under the provisions of this Act with the sanction of the Local Government Board shall be repaid within such period or periods not exceeding sixty years as the Local Government Board may sanction.

(3) In respect of any sums of money borrowed for or in connection with the central improvements the Corporation shall not be required during the period of five years from the date of the borrowing of such sums to make any payments into sinking fund in respect thereof.

Returns to
Local Go-
vernment
Board as to
sinking
funds.

105.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts

which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) relating thereto as the Board shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court. A.D. 1913.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

106. The following sections of the former Acts (that is to say) :— Incorporating certain sections of former Acts.

Of the Act of 1900—

Section 51 (As to sinking fund);

Section 52 (Power to re-borrow);

Section 53 (Receiver);

Section 54 (Protection of lenders from inquiry);

Section 55 (Corporation not to regard trusts);

Of the Act of 1902—

Section 82 (Provisions as to mortgages);

A.D. 1913.

Section 84 (Mode of repayment);

Section 86 (Application of money borrowed);

shall extend and apply mutatis mutandis to and in relation to the like matters as if they were re-enacted in this Act.

Power to invest all sinking funds in statutory securities.

107. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to use one form of mortgage for all purposes.

108.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment

of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted. A.D. 1913.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

A.D. 1913.

(11) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrowing.

109.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein ; or

(b) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes” and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the use of moneys from such sinking fund :

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund :

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from

such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

A.D. 1913.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

110.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more equated periods within which all or any loans contracted by them under statutory borrowing powers including the loans borrowed or taken over by the body formerly known as the Bradford School Board the liability in respect of which was by the provisions of the Education Act 1902 transferred to the Corporation shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

Scheme for
fixing
equated
periods and
consolidating
loans.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights or remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any corporation stock existing at that time except with the consent of such mortgagee or holder.

(4) The Corporation may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow

A.D. 1913. — such moneys as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board shall sanction.

(5) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Closing of registers of mortgages.

111. The provisions of section 53 (Closing of transfer books) of the Act of 1897 shall extend and apply mutatis mutandis to and in respect of mortgages or other securities of the Corporation in like manner as the provisions of that section apply to stock.

PART XVII.

GENERAL PROVISIONS.

Power to grant gratuities in certain cases.

112.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Evidence of appointments authority &c.

113. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the city it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the lord mayor or of the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

114. No matter or thing done or contract entered into by the Corporation nor any matter or thing done by the town clerk or by any member or officer of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

A.D. 1913.
Persons acting in execution of Act not to be personally liable.

115. Any person deeming himself aggrieved by any order judgment determination or requirement made or given under the provisions of this Act or the former Acts or the withholding or revocation of any certificate licence permission consent or approval to be granted under the provisions of this Act or the former Acts of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act or the former Acts may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may appeal and in the like manner.

As to appeal.

116. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

117. Offences against this Act and penalties costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner:

Recovery of penalties &c.

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

118. The accounts of any receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

Audit of accounts of Corporation.

A.D. 1913.

Inquiries by
Local
Government
Board.

119.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Powers of
Act cumu-
lative.

120. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and shall be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown
rights.

121. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of
Act.

122. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (in this Act referred to as "the costs of this Act") as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or city rate or out of moneys borrowed under the authority of this Act for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1913.

THE FIRST SCHEDULE.

THE FORMER ACTS.

The Bradford Improvement Act 1850 ;
The Bradford Waterworks Act 1854 ;
The Bradford Corporation Waterworks Act 1854 ;
The Bradford Corporation Waterworks Amendment Act 1855 ;
The Bradford Corporation Waterworks Act 1858 ;
Bradford Waterworks Act 1862 ;
Bradford Corporation Act 1866 ;
The Bradford Waterworks and Improvement Act 1868 ;
The Bradford Waterworks Act 1869 ;
The Bradford Corporation Gas and Improvement Act 1871 ;
The Bradford Improvement Act 1873 ;
The Bradford Waterworks and Improvement Act 1875 ;
The Bradford Water and Improvement Act 1878 ;
The Bradford Corporation Tramways Order 1880 ;
The Bradford Water and Improvement Act 1881 ;
The Bradford Electric Lighting Order 1883 ;
The Bradford Corporation Tramways Order 1883 ;
The Bradford Order confirmed by the Local Government Board's
Provisional Orders Confirmation (No. 4) Act 1884 ;
The Bradford Waterworks and Improvement Act 1885 ;
The Bradford Order confirmed by the Local Government Board's
Provisional Orders Confirmation (No. 8) Act 1886 ;
The Bradford Corporation Tramways Order 1886 ;
The Bradford Corporation (Various Powers) Act 1887 ;
The Bradford Corporation Tramways Order 1888 ;
The Bradford Corporation Tramways Order 1890 ;
The Bradford Corporation Waterworks Act 1890 ;
The Bradford Corporation Waterworks Act 1892 ;
The Bradford Order 1892 confirmed by the Local Government
Board's Provisional Orders Confirmation (No. 9) Act 1892 ;

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The Bradford Tramways and Improvement Act 1897 ;
The Bradford Tramways and Improvement Act 1899 ;
The Bradford (Yorks) Extension Order 1899 ;
The Bradford Corporation (Tramways Gas and Various Powers)
Act 1900 ;
The Bradford Corporation Act 1901 ;
The Bradford Corporation Act 1902 ;
The Bradford Corporation Act 1903 ;
The Bradford Order 1907 ;
The Bradford Order 1908 ;
The Bradford Corporation Act 1910 ; and
The Bradford Corporation (Trolley Vehicles) Order 1912.

THE SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED.

Parish.						Numbers on deposited Plans.
Bradford	-	-	-	-	-	1 50.
Eccleshill	-	-	-	-	-	54.
Bradford	-	-	-	-	-	137 149 to 160 (both numbers inclusive) 162 163.
Eccleshill	-	-	-	-	-	176 189 190 225 232 233 234.

THE THIRD SCHEDULE.

PART I.

BUILDING REGULATIONS.

Regulation IX. set out in the Fourth Schedule to the Act of 1871 is hereby repealed and shall cease to have effect and the following regulation shall be substituted therefor:—

(IX.) Every habitable room hereafter built shall have at least one window opening directly into the external air of a total area or if more than one of a total aggregate area clear of the sash frames equal to at least one tenth of the floor area of such

room and every habitable room if without a fireplace shall be provided with special means of ventilation by an air shaft or otherwise as the Corporation may approve. A.D. 1913.

Regulation XX. set out in the Fourth Schedule to the Act of 1871 shall be and the same is hereby amended so as to require every person who shall intend to erect any new building to give one month's notice to the Corporation in lieu of a fortnight's notice and the reference to the period of a fortnight in Regulations XXIV. and XXV. shall in each case be deemed to be to such period of one month.

Regulation XXII. set out in the Fourth Schedule to the Act of 1871 shall cease to have effect and the following regulation shall be substituted therefor:—

(XXII.) If in doing any work or erecting any building anything is done contrary to the regulations for the time being in force or anything required by such regulations is omitted to be done the surveyor shall within twenty-four hours after the survey or inspection at which such act or omission shall be detected give to the builder or person engaged in erecting such building or in doing such work notice in writing requiring such builder or person within forty-eight hours from the service of such notice to proceed to cause anything done contrary to such regulations to be amended or to do anything required to be done by such regulations but which has been omitted to be done and any such notice shall be deemed to have been duly served upon such builder or person if within such twenty-four hours such notice shall have been delivered to him personally or by leaving the same at his usual place of abode or by forwarding the same by post in a registered letter addressed with a sufficient direction to his usual place of abode or business and posted within such period of twenty-four hours.

In Regulation 2 set out in the Second Schedule to the Act of 1878 the distance of 200 yards specified in that regulation shall in each case be reduced to 150 yards.

Regulation 8 set out in the Second Schedule to the Act of 1878 shall cease to have effect and is hereby repealed and the following regulation shall be substituted therefor:—

No stable cowshed or piggery shall be erected nor shall any manure pit be made within a distance of twelve feet from any dwelling-house or from any street nor shall any new dwelling-house be erected within that distance of any stable cowshed piggery or manure pit and any stable cowshed piggery or manure pit wherever made shall be placed in such position relatively to neighbouring dwelling-houses and be constructed in such manner as the Corporation may approve.

A.D. 1913. Regulation 9 set out in the Second Schedule to the Act of 1878 shall hereafter be read and have effect as if the words "or good tracing paper" were not included therein.

The expression "good mortar" where used in Regulation 2 set out in the Second Schedule to the Act of 1881 in reference to plastering walls shall be deemed to require the admixture with such mortar of cowhair or other fibrous material sufficient to ensure that the mortar will effectively adhere to the walls.

Regulation (c) set out in Part II. of the Fourth Schedule to the Act of 1910 is hereby repealed and shall cease to have effect and the following regulation shall be substituted therefor :—

(c) Before building operations are commenced in connection with any new building all vegetable soil shall be excavated from the whole of the space within the foundation walls of such building (including the site of such walls) up to a depth of at least twelve inches and if there be a greater depth of vegetable soil than twelve inches there shall be laid over the whole of such space a bed not less than six inches thick of good cement concrete.

Regulation XIII. set out in Part I. of the Fourth Schedule to the Act of 1910 is hereby repealed and the following regulation shall be substituted therefor :—

(XIII.) The drains of all houses and buildings shall consist of glazed stoneware or fireclay pipes or other equally suitable material of such dimensions strength and quality as shall be approved of by the Corporation properly jointed with good cement and connected with the sewers in such manner as the surveyor may direct Beneath houses and elsewhere where in the opinion of the Corporation it is necessary all drains shall be embedded in and surrounded with good cement concrete No right angle junctions either vertical or horizontal shall be formed.

Notwithstanding the provisions of Regulation V. set out in Part I. of the Fourth Schedule to the Act of 1910 woodwork (other than timber) may in any new dwelling-house be placed within nine inches but not nearer than four and a half inches from the inside face of any chimney opening or flue if fireproof plugs and asbestos sheeting or other incombustible materials are used and the whole of the work be made fire-resisting to the satisfaction of the Corporation.

Regulation 10 set out in the First Part of the Fourth Schedule to the Act of 1910 shall cease to apply with respect to the thickness of external walls for the construction of bay windows area windows turrets balconies or other like erections or projections provided that

such walls are constructed with due regard to stability and the prevention of fires and in every respect to the satisfaction of the Corporation. A.D. 1913.

PART II.

(A) The internal walls of every new dwelling-house below the level of the first floor shall be constructed of stone or good sound well-burnt bricks properly bonded and solidly put together with good mortar or cement. Provided that the Corporation may approve other hard and incombustible materials if the construction of such walls therewith will secure equal stability and security from fire.

(B) The internal walls (not being party walls) or partitions of a new dwelling-house above the level of the first floor may be constructed of timber frame work or as trussed partitions if the timber frame work or trusses are constructed of good sound timber properly put together and are properly covered with laths and plastered with good mortar as hereinbefore defined for the purpose of Regulation 2 set out in the Second Schedule to the Act of 1881.

(C) No room in the lowest storey of any new dwelling-house shall be provided with a wooden or boarded floor unless there shall if the site be covered with concrete be a space of not less than three inches and otherwise a space not less than nine inches throughout the whole area below the under side of the joists carrying such floor and such space be properly and adequately ventilated by suitable and sufficient air bricks or other equally satisfactory method or unless the boards planks or wood blocks are bedded directly upon concrete or other equally impervious material.

(D) No part of any new building the ground floor whereof is intended to be used as a lock-up shop or as a warehouse or for any purpose involving the leaving of such ground floor unattended at night shall be used as a dwelling-house unless there be an access to the street from the part used as a dwelling-house separated by brick or other incombustible material from the part used otherwise or the walls and ceilings including the roof of any projection on the ground floor between the part to be used as a dwelling-house and the part to be used for such other purposes shall be constructed of fire-resisting materials and the part to be used as a dwelling-house shall be provided with adequate means of escape otherwise than through the ground floor in case of fire.

(E) All timber used in the construction of floors and roofs of any new building shall be of good quality suitable for the purposes required and of such dimensions as will secure due stability having regard to the method of construction of such floors and roofs and to the purposes for which such building is to be used and to the

A.D. 1913. — nature of other material used in such building and the method of such construction shall be subject to the approval of the Corporation.

(F) All woodwork of the flat and roof of any new dwelling-house and of every turret dormer lantern-light skylight or other erection placed on or in the flat or roof of such building shall be externally covered with slates tiles metal or other incombustible materials except as regards any door door-frame window or window-frame of any such turret dormer lantern-light skylight or other erection.

Every gutter or trough forming part of the roof of such building shall be constructed of or covered with incombustible materials.

(G) Every person who shall erect a dwelling-house or domestic building and shall cause the roof of such building (not being a boarded roof) to be covered with slates shall cause all such slates to be secured to sawn roof battens or slate laths not less than one and a quarter inches in depth and three quarters of an inch in thickness by not less than two strong nails of copper or other suitable material at least one and a quarter inches in length to each slate where such slate is of ordinary thickness and where such slate is of more than ordinary thickness of such greater length as may be necessary to secure such slate such nails being driven into the battens or slate laths or fixed in the mortar or cement on the top of any party wall across which such slates shall extend and are to be bedded and he shall cause every slate to overlap the slate next but one below it to the extent of not less than three inches :

Provided that if such roof is covered with tile stones they shall be hung or secured to the roof battens or slate laths by means of wooden pegs of proper quality not less than half an inch in thickness and three inches long where practicable and otherwise to the satisfaction of the Corporation or if tiles or other suitable materials are used they must be securely fastened to the roof timbers to the satisfaction of the Corporation.

(H) Every wall pier and chimney breast or other support of any new building shall rest upon proper and sufficient footings of such dimensions as shall be approved of by the Corporation or upon solid rock reduced to a uniform level or levels or upon some other sufficient and incombustible artificial bed or substructure as a foundation but in all respects to the satisfaction of the Corporation.

(J) When any plans of any new building are submitted to the Corporation all particulars which by the regulations for the time being in force the Corporation can require to be shown shall be so shown either by design or in writing and every such plan shall be signed by the person on whose behalf the same is submitted or on his behalf and all such buildings shall be carried out in accordance with the plan and particulars so signed and not otherwise.

(K) In the case of any new building other than a dwelling-house where the plans disclose the purpose for which such building is to be used the provisions of Regulation 10 set out in Part I. of the Fourth Schedule to the Act of 1910 may be departed from to the extent permitted by the Corporation and stated in writing on the plans so long as the materials with which and the thickness at which the external walls of such building are constructed are in the opinion of the Corporation sufficient for the stability of such building and for preventing risk in case of fire having regard to the purposes for which it is to be used. A.D. 1913.

If the provisions of the said Regulation 10 be departed from any person who uses such building for any other purpose shall be deemed to have committed an offence against the regulations and may be proceeded against accordingly.

(L) The Corporation before approving the plans of any new dwelling-house may require the provision of a suitable place or recess for the purpose of keeping any moveable dustbin in connection with such dwelling-house or may require the provision of a fixed dustbin of such dimensions and construction as they may think necessary for the purposes of such dwelling-house and in such situation as they may think desirable.

(M) If any person in respect of any building or street shall do any act contrary to the regulations for the time being in force within the city or shall omit to do any act required by such regulations or fails to comply with any notice served pursuant to such regulations he shall be deemed to have committed an offence and be liable accordingly under the provisions of Regulation No. XXV. set out in the Fourth Schedule to the Act of 1871.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

CITY OF BRADFORD.

By virtue of the Bradford Corporation Act 1913 and of other their powers in that behalf them enabling the lord mayor aldermen and citizens of the city of Bradford in the west riding of the county of York (hereinafter referred to as "the Corporation") in consideration of the sum of pounds paid to the treasurer of the city by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the

[Ch. xcvi.] *Bradford Corporation Act, 1913.* [3 & 4 GEO. 5.]

A.D. 1913. Corporation in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until payment of the said principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the said principal sum of _____ pounds shall be repaid at the town hall in the said city on the _____ day of _____ one thousand nine hundred and _____ :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hands of the town clerk and city treasurer of the city for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this _____ day of _____ one thousand nine hundred and _____ .

LORD MAYOR.

TOWN CLERK.

L.S.

CITY TREASURER.

The Endorsement within referred to.

The within-named _____ consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the _____ day of _____ one thousand nine hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ one thousand nine hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this _____ day of _____ one thousand nine hundred and _____ .

FORM OF TRANSFER OF MORTGAGE.

A.D. 1913.
—

I [the within-named] of
in consideration of the sum of pounds
paid to me by of
(hereinafter referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number of the revenues of the lord
mayor aldermen and citizens of the city of Bradford in the west riding
of the county of York bearing date the day of
] and all my right and interest under the
same subject to the several conditions on which I hold the same at
the time of the execution hereof and I the transferee for myself my
executors administrators and assigns do hereby agree to take the said
mortgage security subject to the same conditions.

Dated this day of one
thousand nine hundred and .

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